

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE DANIEL D. DOMENICO**

Civil Action No.: 18-cv-02076-DDD-SKC
Courtroom Deputy: Robert R. Keech

Date: October 4, 2022
Court Reporter: Kevin Carlin

Parties:

HOLLIS ANN WHITSON, as guardian ad litem
for Peatinna Biggs,

Plaintiff,

v.

THOMAS HANNA, Former Sheriff, in his
official and individual capacities,

Defendant.

Counsel:

Jane Holse Fisher-Byrialsen
David N. Fisher

Matthew W. Buck

COURTROOM MINUTES

JURY TRIAL (DAY 2)

9:07 a.m. Court in session. Jury not present.

Discussion regarding including nominal damages in the jury instructions
and verdict form.

9:10 a.m. Jury enters.

9:11 a.m. Plaintiff's witness **Larry Neugebauer** sworn.

Direct examination continues by Plaintiff by Ms. Fisher-Byrialsen.

Exhibit(s) identified: 12, 7

Exhibit(s) 12, 7 RECEIVED.

9:44 a.m. Bench conference regarding areas Mr. Buck seeks to cover in cross-
examination.

9:47 a.m. Cross examination by Defendant by Mr. Buck.

9:53 a.m. Court in recess.

10:10 a.m. Court in session. Jury enters.

10:13 a.m. Plaintiff's witness **Bridget Britton** sworn.

Direct examination continues by Plaintiff by Mr. Fisher.

10:42 a.m. Cross examination by Defendant by Mr. Buck.

10:44 a.m. Plaintiff rests.

10:45 a.m. Bench conference regarding Defendant's case-in-chief and Defendant's oral motion to strike Larry Neugebauer's testimony.

ORDERED: Defendant's oral motion to strike Larry Neugebauer's testimony is **TAKEN UNDER ADVISEMENT.**

10:50 a.m. Defendant's witness **Thomas Hanna** sworn.

Direct examination by Defendant by Mr. Buck.

11:04 a.m. Cross examination by Plaintiff by Mr. Fisher.

11:21 a.m. Defendant rests.

11:23 a.m. Jury excused until 1:00 p.m.

11:23 a.m. Court in recess.

12:52 p.m. Court in session. Jury not present.

Further discussion and argument regarding Defendant's oral motion to strike Larry Neugebauer's testimony.

ORDERED: Defendant's oral motion to strike Larry Neugebauer's testimony is **DENIED.**

12:58 p.m. Discussion and argument regarding jury instructions and verdict form.

1:06 p.m. Court in recess.

1:41 p.m. Court in session. Jury not present.

1:43 p.m. Jury enters.

1:44 p.m. Court reads jury instructions.

2:00 p.m. Bench conference regarding Court's reading of jury instructions.

2:05 p.m. Court continues to read jury instructions and verdict form.

2:29 p.m. Court in recess.

2:40 p.m. Court in session. Jury not present.

Discussion regarding revision to jury instruction.

2:42 p.m. Jury enters

2:43 p.m. Closing argument by Plaintiff by Mr. Fisher.

3:03 p.m. Closing argument by Defendant by Mr. Buck.

3:17 p.m. Rebuttal argument by Plaintiff by Mr. Fisher.

3:37 p.m. Court Security Officer (CSO) sworn to sit outside jury deliberation suite during deliberations.

3:38 p.m. Jury excused to commence deliberations.

Court's remarks to counsel regarding availability.

3:40 p.m. Court in recess. Subject to call.

4:55 p.m. Court in session. Jury not present.

Court indicates jury has reached a verdict.

4:58 p.m. Jury enters.

Court reads verdict form.

5:01 p.m. Jury is polled.

Court closing remarks to jurors, thanks jurors for their service as jurors, and jurors are discharged.

5:04 p.m. Jury excused.

Court's closing remarks to counsel and staff.

5:04 p.m. Court in Recess. **TRIAL CONTINUED. TOTAL TIME: 4:10**